

## 26STCV00863 26STCV00863

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-07-28

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C400%2C07%2F28%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C400%2C07%2F28%2F2026)

Source SHA-256: 294a2a3fd7f501e6a87d8656a5e4d595763b9c1fdf830baa62868eb3c6ac4697

Case Number: 26STCV00863 Hearing Date: July 28, 2026 Dept: 400

### MOTION TO STRIKE OR TAX COSTS

The Court tenders the following tentative decision in the matter Kenmore 3450, LLC v. KBI Food Ventures LLC, Los Angeles County Superior Court case number 26STCV00863, set for hearing on July 28, 2026. Kenmore 3450, LLC (Plaintiff) moves to tax the memorandum of costs filed by KBI Food Ventures LLC (Defendant). Plaintiff's motion is granted.

Plaintiff moves to strike Defendant's memorandum of costs on the grounds that Defendant is not considered the prevailing party for the purpose of receiving a costs award and because the memorandum was not properly filed. For the purposes of receiving costs following the resolution of a case, "a defendant in whose favor a dismissal is entered" is a prevailing party. (Code Civ. Proc., § 1032, subd. (a)(4).) This includes both voluntary and involuntary dismissal. (Santisas v. Goodin (1998) 17 Cal.4th 599, 606.) Here, Plaintiff voluntarily dismissed the present action, entitling Defendant to costs under section 1032.

However, Defendant has not properly filed its memorandum of costs. "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the

items of cost are correct and were necessarily incurred in the case.” (Rules of Court, rule 3.1700(a)(1).) Here, dismissal was entered on April 13, 2026 and the Order of Dismissal was served that same day by the Clerk. No memorandum was filed with the Court by April 28; indeed, the Court's docket does not reflect a memorandum of costs ever being filed. Thus, Defendant has not filed a memorandum of costs in compliance with the Rules of Court. Accordingly, Plaintiff's motion is granted.

Conclusion:

Plaintiff's motion is granted.